Document

EXHIBIT 10.28

The Goldman Sachs Group, Inc.

[One-Time][Year-End] Performance-Based RSU Award

This Award Agreement, together with The Goldman Sachs Amended and Restated Stock Incentive Plan (2025) (the “Plan”), governs your __________ award of performance-based RSUs (your “Award”). You should read carefully this entire document (including its [Appendix][Appendices]), the Award Statement and the Signature Card (together, the “Award Agreement”), as well as the other documentation presented to you in connection with acceptance of your Award (collectively, “Award Documentation”).

Acceptance

1.

You Must Decide Whether to Accept Your Award

.

To be eligible for your Award, you must by the Acceptance Deadline: (a) open and activate an Account; (b) accept any Additional Terms presented to you as part of the Award Documentation; and (c) execute (including by electronic means) the accompanying Signature Card in accordance with its instructions. By executing the Signature Card, you confirm your agreement to

all

of the terms of the Award Agreement (including the Award Statement and the Signature Card), as well as any Additional Terms.

Documents that Govern Your Award; Definitions

2.

The Plan

.

Your Award is granted under the Plan, and the Plan’s terms apply to, and are a part of, this Award Agreement. The Plan and its prospectus are included with the Award Documentation.

3.

Your Award Statement

.

The accompanying Award Statement contains the number of PSUs awarded to you and some of your Award’s specific terms. For example, it specifies the Performance Period and the Performance Goal[s] applicable to your Award. It also contains the Vesting Date[s], the Determination Date and the Settlement Date[s] for your Award and [the] [any applicable] Transferability Date[s] for any Shares at Risk that may be delivered to you in respect of any Settlement Amount. The number of PSUs on your Award Statement is not necessarily the number of PSUs in respect of which the Settlement Amount will be earned, but is merely the basis for determining the amount (if any) that will be delivered to you. [Your Award consists of two types of PSUs that are designated in the Award Statement as _____ Year-End Base PSUs and _____ Year-End Additional Base PSUs. All references to PSUs in this Award Agreement include Outstanding PSUs of all types, whether Base PSUs or Additional PSUs.]

4.

Definitions

.

Unless otherwise defined herein, including in the Definitions Appendix or any other Appendix, capitalized terms have the meanings provided in the Plan.

Vesting of Your PSUs

5.

Vesting

.

On each Vesting Date listed on your Award Statement, you will become Vested in the amount of Outstanding PSUs listed next to that date. When a PSU becomes Vested, it means

only

that your continued active Employment is not required to earn delivery in respect of that PSU.

Vesting does not mean you have a non-forfeitable right to the Vested portion of your Award. The terms of this Award Agreement (including conditions to delivery, satisfaction of the Performance Goal[s] and any applicable Transfer Restrictions) continue to apply to Vested PSUs, and you can still forfeit Vested PSUs, any Settlement Amount and any Shares at Risk.

Performance Goal[s]

6.

Performance

.

The Settlement Amount is dependent, and may vary based, on achievement of the Performance Goal[s] over the Performance Period. On the Determination Date, the Committee will determine whether or not, and to what extent, the Performance Goal[s] for that Performance Period [has][have] been satisfied. All your rights with respect to the Settlement Amount [and any Dividend Equivalent Payments] are dependent on the extent to which the Performance Goal[s] [is][are] achieved, and any rights to delivery in respect of your Outstanding PSUs immediately will terminate, and no Settlement Amount will be delivered [and no Dividend Equivalent Payments will be paid] in respect of such PSUs, upon the Committee’s determination, in its sole discretion, that the Performance Goal[s] [has][have] not been satisfied to the extent necessary to result in delivery [or payment] in respect of the PSUs.

Settlement Amount

7.

Settlement

.

(a)

In General

. Subject to satisfaction of the terms of your Award, including the Performance Goal[s], on [the] [each] Settlement Date [listed on your Award Statement], you will receive delivery (less applicable withholding as described in Paragraph 13(b)) of the [applicable portion of the] Settlement Amount [and payment of any Dividend Equivalent Payments] as further described in your Award Statement. Until such delivery [and payment], you have only the rights of a general unsecured creditor, and no rights as a Shareholder. with respect to either the PSUs or the Settlement Amount. Without limiting the Committee’s authority under Section 1.3.2(h) of the Plan, the Firm may accelerate any Settlement Date by up to 30 days.

(b)

Form of Delivery

. The Settlement Amount will be delivered in the form of Shares by book entry credit to your Account.

(c)

Shares at Risk

. __% of the Shares delivered to you in respect of the Settlement Amount

before

tax withholding (or, if the applicable tax withholding rate is greater than __%, all Shares delivered after tax withholding) will be Shares at Risk subject to Transfer Restrictions until the [applicable] Transferability Date. Any purported sale, exchange, transfer, assignment, pledge, hypothecation, fractionalization, hedge or other disposition in violation of the Transfer Restrictions on Shares at Risk will be void.

(d)

Release of Transfer Restrictions

. Within 30 Business Days after the [applicable] Transferability Date identified on your Award Statement, GS Inc. will remove the Transfer Restrictions on any Shares at Risk [in respect of the percentage of the Settlement Amount listed next to that date]. The Committee may select multiple dates within the 30-Business-Day period on which to remove Transfer Restrictions for all or a portion of the Shares at Risk with the same Transferability Date, and all such dates will be treated as a single

Transferability Date for purposes of this Award.

(e)

[Voluntary Deferral of Settlement Date[s]

. Subject to any procedures and agreement terms adopted by the Committee to govern any such election, at least 12 months prior to the last day of the original Performance Period set forth on the Award Statement (or such other date as may be permitted under Section 409A), you may make an irrevocable election to defer the Settlement Date[s] (and the delivery of the Settlement Amount [and payment of any Dividend Equivalent Payments, each] determined as of the Determination Date) until the fifth anniversary of the originally scheduled Settlement Date[s] set forth on the Award Statement (or such other date as may be permitted by Section 409A). Any such election will be in accordance with the subsequent election provisions of Section 409A(a)(4)(C) of the Code and Reg. 1.409A-2(b) or otherwise as may be permitted under Section 409A.]

Dividends

8.

[Dividend Equivalent Rights and] Dividends

.

[Subject to the provisions of Section 2.8 of the Plan, for each of your Outstanding PSUs with respect to which delivery is made under the Settlement Amount, you will be entitled to Dividend Equivalent Rights equal to any regular cash dividend payment that would have been made had the Shares underlying your Outstanding PSUs been delivered for any record date that occurs on or after the Date of Grant. You will have no right to receive any Dividend Equivalent Payments relating to PSUs for which you do not receive delivery under the Settlement Amount (including, without limitation, due to a failure to satisfy the Performance Goal[s]). Dividend Equivalent Payments (less applicable withholding as described in Paragraph 13(b)) will be paid on the [applicable] Settlement Date[s]. In addition, you][You] will be entitled to receive on a current basis any regular cash dividend paid in respect of any Shares at Risk. [The PSUs do

not

include Dividend Equivalent Rights.]

Forfeiture of Your Award

9.

How You May Forfeit Your Award

.

This Paragraph 9 sets forth the events that result in forfeiture of up to all of your PSUs and any Shares at Risk and may require repayment to the Firm of up to all other amounts previously delivered or paid to you under your Award in accordance with Paragraph 10. More than one event may apply, and in no case will the occurrence of one event limit the forfeiture and repayment obligations as a result of the occurrence of any other event. Paragraph 11 (relating to certain circumstances under which you will not forfeit your unvested PSUs upon Employment termination) and Paragraph 12 (relating to certain circumstances under which vesting and/or release of Transfer Restrictions may be accelerated) provide for exceptions to one or more provisions of this Paragraph 9.

(a)

Unvested PSUs Forfeited if Your Employment Terminates

. If your Employment terminates for any reason or you are otherwise no longer actively Employed with the Firm (which includes off-premises notice periods, “garden leaves,” pay in lieu of notice or any other similar status), your rights to your Outstanding PSUs that are not Vested will terminate and no Settlement Amount will be delivered in respect of such PSUs.

(b)

Vested and Unvested PSUs Forfeited upon Association with a Covered Enterprise

. Except as prohibited by applicable law, if the Committee determines that you Associated with a Covered Enterprise during the Performance Period, your rights to all of your Outstanding PSUs (whether or not Vested) will terminate and no Settlement Amount will be delivered in respect of such PSUs.

(c)

Vested and Unvested PSUs Forfeited upon Solicitation of Clients or Employees [and upon Certain Adverse Financial Events]

. If the Committee determines that any of the following has occurred before the Settlement Date, your rights to all of your Outstanding PSUs (whether or not Vested) will terminate and no Settlement Amount will be delivered in respect of such PSUs, as may be further described below:

(i)

You Solicited Clients or Employees or Interfered with Client or Employee Relationships

. Except as prohibited by applicable law, either:

(A)

you, in any manner, directly or indirectly, (1) Solicited any Client to transact business with a Covered Enterprise or to reduce or refrain from doing any business with the Firm, (2) interfered with or damaged (or attempted to interfere with or damage) any relationship between the Firm and any Client, (3) Solicited any person who is an employee of the Firm to resign from the Firm, (4) Solicited any Selected Firm Personnel to apply for or accept employment (or other association) with any person or entity other than the Firm or (5) participated in the hiring of any Selected Firm Personnel by any person or entity

other than the Firm (including, without limitation, participating in the identification of individuals for potential hire, and participating in any hiring decision), whether as an employee or consultant or otherwise, or

(B)

Selected Firm Personnel were Solicited, hired or accepted into partnership, membership or similar status by any entity where you have, or will have, direct or indirect managerial responsibility for such Selected Firm Personnel, unless the Committee determines that you were not involved in such Solicitation, hiring or acceptance.

(ii)

[GS Inc. Failed to Maintain the Minimum Tier 1 Capital Ratio

. GS Inc. failed to maintain the required “Minimum Tier 1 Capital Ratio” as defined under Federal Reserve Board Regulations applicable to GS Inc. for a period of 90 consecutive business days.]

(iii)

[GS Inc. Was Determined to Be in Default

. The Board of Governors of the Federal Reserve or the Federal Deposit Insurance Corporation (the “FDIC”) made a written recommendation under Title II (Orderly Liquidation Authority) of the Dodd-Frank Wall Street Reform and Consumer Protection Act for the appointment of the FDIC as a receiver of GS Inc. based on a determination that GS Inc. is “in default” or “in danger of default.”]

(d)

Vested and Unvested PSUs and Shares at Risk Forfeited upon Certain Events

. If the Committee determines that any of the following has occurred (i) your rights to all of your Outstanding PSUs (whether or not Vested) will terminate and no Settlement Amount will be delivered in respect of such PSUs and (ii) your rights to any Shares at Risk will terminate and all such Shares at Risk will be cancelled, in each case, as may be further described below:

(i)

You Failed to Consider Risk

. You Failed to Consider Risk during ______.

(ii)

You Engaged in Conduct Constituting Cause

. Any event that constitutes Cause has occurred before the [applicable] Settlement Date for PSUs or the [applicable] Transferability Date for any Shares at Risk.

(iii)

You Breached an Obligation to the Firm

. You Breached an Obligation to the Firm before the [applicable] Settlement Date for PSUs or the [applicable] Transferability Date for any Shares at Risk.

(iv)
You Did Not Provide Timely and Accurate Certifications
. You failed to certify that you have complied with all of the terms of the Plan and this Award Agreement as required by Paragraph 13(d), or you failed to comply with a term of the Plan or this Award Agreement to which you have certified compliance.
(v)
You Did Not Follow Dispute Resolution Procedures
. You attempted to have any dispute, controversy or claim under the Plan or this Award Agreement resolved in any manner that is not provided for by Paragraph 16 or Section 4.13 of the Plan, or you attempted to arbitrate a dispute, controversy or claim without first having exhausted your internal administrative remedies in accordance with Paragraph 13(c).
(vi)
You Brought an Action that Resulted in a Determination that Any Award Agreement Term Is Invalid
. As a result of any action brought by you, it is determined that any term of this Award Agreement is invalid.
(vii)
You Received Compensation in Respect of Your Award from Another Employer
. Your Employment terminated for any reason or you otherwise were no longer actively Employed with the Firm and another entity granted you cash, equity or other property (whether vested or unvested) to replace, substitute for or otherwise in respect of any Outstanding

PSUs or Shares at Risk;
provided, however,
 that your rights will only be terminated in respect of the PSUs and Shares at Risk that are replaced, substituted for or otherwise considered by such other entity in making its grant.
(viii)
[Accounting Restatement Required under Sarbanes-Oxley
. GS Inc. was required to prepare an accounting restatement due to GS Inc.’s material noncompliance, as a result of misconduct, with any financial reporting requirement under the securities laws as described in Section 304(a) of Sarbanes-Oxley;
provided, however,
 that your rights will only be terminated in respect of PSUs and Shares at Risk to the same extent that would be required under Section 304(a) of Sarbanes-Oxley had you been a “chief executive officer” or “chief financial officer” of GS Inc. (regardless of whether you actually hold such position at the relevant time).]
(ix)
Accounting Restatement Required and Dodd-Frank Clawback Policy Applies
. GS Inc. was required to prepare an “Accounting Restatement” as described in GS Inc.’s Policy for Recovery of Erroneously Awarded Compensation (the “Dodd-Frank Clawback Policy”); in each case if, and to the same extent as, required under the Dodd-Frank Clawback Policy. For the avoidance of doubt, PSUs previously granted to you and Shares at Risk in respect of PSUs previously granted to you are also subject to forfeiture and clawback under this Paragraph 9(d)[(viii)][(ix)].
(e)
[Additional Forfeiture and Repayment Conditions for Material Risk Takers
. [If at any point in _____ the Firm identified][Since] you [were or have been identified] as a Material Risk Taker or its equivalent (“MRT”)[,][then] [the [
EU and] UK Material Risk Taker Appendix]
 [and/or] [the
GSBE Material Risk Taker Appendix]
 ([as applicable to you,] the “MRT Appendix”) supplements this Paragraph 9. The MRT Appendix sets forth additional circumstances under which you may (i) forfeit up to all of your

PSUs and Shares at Risk and (ii) be required to repay to the Firm up to all amounts previously delivered or paid to you under your Award in accordance with Paragraph 10. Your MRT classification, as defined in the MRT Appendix, was communicated to you separately. [If you are unsure of whether the Firm identified you as an MRT, or which classification(s) apply, you must contact HCM prior to accepting this Award.] The Firm’s records with respect to such classification(s) will be controlling as to whether and which MRT Appendix applies to your Award. [The MRT classifications with their corresponding MRT Appendix are as follows:

MRT Classification

MRT Appendix

UK MRT

EU and UK Material Risk Taker Appendix

GSAMI MRT and GSAMI Senior Management

EU and UK Material Risk Taker Appendix

GSAMBV MRT

EU and UK Material Risk Taker Appendix

GSPIC MRT and GSPIC Senior Management

EU and UK Material Risk Taker Appendix

GSBE MRT and GSBE Senior Management

GSBE Material Risk Taker Appendix

GSBE MRT or GSBE Senior Management

and

any combination of GSAMI MRT, GSAMI Senior Management, GSAMBV MRT, GSPIC MRT, GSPIC Senior Management or UK MRT

GSBE Material Risk Taker Appendix

and

EU and UK Material Risk Taker Appendix]]

(f)

Actions Pending Forfeiture

. In connection with any investigation as to whether one or more of the events that would result in forfeiture under the Plan [or][,] this Paragraph 9 [or the MRT Appendix] have occurred, the Firm reserves the right to (i) suspend vesting of Outstanding PSUs, [any Dividend Equivalent Payments,] delivery of the Settlement Amount or release of any Transfer Restrictions; (ii) deliver the Settlement Amount[, any Dividend Equivalent Payments] or dividends into an escrow account in accordance with Paragraph 13(e)(iii); or (iii) apply Transfer Restrictions to any Shares.

Repayment of Your Award

10.

When You May Be Required to Repay Your Award

.

(a)

Repayment Generally

. If the Committee determines that any term of this Award was not satisfied, you will be required, immediately upon demand therefor, to repay to the Firm the following:

(i)

Any Settlement Amount (including any Shares at Risk) for which the terms (including the terms for delivery) of the corresponding PSUs were not satisfied, in accordance with Section 2.6.3 of the Plan.

(ii)

Any Shares at Risk for which the terms (including the terms for the release of Transfer Restrictions) were not satisfied, in accordance with Section 2.5.3 of the Plan.

(iii)

[Any Shares that were delivered (but not subject to Transfer Restrictions) at the same time any Shares at Risk that are cancelled or required to be repaid were delivered.]

(iv)
[Any Dividend Equivalent Payments for which the terms were not satisfied (including any such payments made in respect of PSUs that are forfeited or any Settlement Amount that is required to be repaid), in accordance with Section 2.8.3 of the Plan.]
(v)
Any dividends paid in respect of any [delivered Shares (including] Shares at Risk[)] that are cancelled or required to be repaid.
(vi)
Any amount applied to satisfy tax withholding or other obligations with respect to any PSUs, Settlement Amount (including Shares at Risk), [Dividend Equivalent Payments] and dividends that are forfeited or required to be repaid.
(b)
Repayment upon Materially Inaccurate Financial Statements
. If any delivery is made under this Award Agreement based on materially inaccurate financial statements (which includes, but is not limited to, statements of earnings, revenues or gains) or other materially inaccurate performance criteria, you will be obligated to repay to the Firm, immediately upon demand therefor, any excess amount delivered, as determined by the Committee in its sole discretion. For the avoidance of doubt, this Paragraph 10(b) includes any repayment required following an “Accounting Restatement” under the Dodd-Frank Clawback Policy.
(c)
[Repayment Upon Accounting Restatement Required Under Sarbanes-Oxley
. If an event described in Paragraph 9(c)(viii) (relating to a requirement under Sarbanes-Oxley that GS Inc. prepare an accounting restatement) occurs, any Settlement Amount (including Shares at Risk), dividend payments, [Dividend Equivalent Payments,] cash or other property delivered, paid or withheld in respect of this Award will be subject to repayment as described in Paragraph 10(a) to the same extent that would be required under Section 304(a) of Sarbanes-Oxley had you been a “chief executive officer” or “chief financial officer” of GS Inc. (regardless of whether you actually hold such position at the relevant time).]
Terminations of Employment
11.
Treatment of Vested PSUs
.

(a)
Generally
. Unless the Committee determines otherwise, if your Employment terminates for any reason or you are otherwise no longer actively Employed with the Firm (which includes off-premises notice periods, “garden leaves,” pay in lieu of notice or any other similar status), the Performance Goal[s] applicable to your Outstanding PSUs will continue to apply with respect to your Vested PSUs (and PSUs that are treated as Vested) and the determination of the Settlement Amount will continue to be subject to whether, and to what extent, the Performance Goal[s] [has][have] been achieved with respect to such PSUs, in each case, as provided in Paragraph 6. All other terms of this Award Agreement, including the other forfeiture and repayment events in Paragraphs 9 and 10 [and the MRT Appendix], also continue to apply.
(b)
[Retirement or] Extended Absence
. If your Employment terminates by [Retirement or] Extended Absence, then Paragraph 9(a) will not apply, and your Outstanding PSUs that are not Vested will be treated as Vested and, on that basis, be subject to Paragraph 11(a).
However, your rights to any Outstanding PSU that is treated as Vested by this Paragraph 11(b) will terminate and no Settlement Amount will be delivered in respect of that PSU if you Associate with a Covered Enterprise during the Performance Period, as described in Paragraph 9(b)
. You acknowledge and agree that if any portion of the preceding sentence is unenforceable under

applicable law, or is found to be unenforceable, then the entirety of this Paragraph 11(b) is inapplicable to you and your rights to any Outstanding PSUs that were treated as Vested, or otherwise would have been treated as Vested, will be cancelled in accordance with Paragraph 9(a).
(c)
[Qualified Termination
. If the Firm terminates your Employment solely by reason of a Qualified Termination and you execute a general waiver and release of claims and an agreement to pay any associated tax liability in the form the Firm prescribes, then Paragraph 9(a) will not apply, and a pro rata portion of your Outstanding PSUs (based on the portion of the Performance Period during which you were Employed) will become Vested and, on that basis, be subject to Paragraph 11(a). For the avoidance of doubt, your rights to any Outstanding PSUs will be terminated and no Settlement Amount will be delivered in respect thereof if you Associate With a Covered Enterprise during the Performance Period, as described in Paragraph 9(b).]
12.
Accelerated Vesting and/or Release of Transfer Restrictions in the Event of [a Change in Control,] [a Qualifying Termination] [or] Death
.
In the event of [a Change in Control][,] your [Qualifying Termination] [or] death, [each] as described below, your Outstanding PSUs will become Vested and Paragraph 9(a) will not apply, any delivery of your Shares at Risk will be treated as described in this Paragraph 12. [Except as set forth in Paragraph 12(a), all] [All] other terms of this Award Agreement continue to apply, including the forfeiture and repayment events in Paragraphs 9 and 10 [and the MRT Appendix]. [In each case, the Performance Goal[s] applicable to your Outstanding PSUs will continue to apply and the determination of the Settlement Amount will continue to be subject to whether, and to what extent, the Performance Goal[s] [has][have] been achieved, in each case, as provided in Paragraph 6.]
(a)
[Change in Control
.
(i)
In the event of a Change in Control which would result in none of GS Inc., its successors (including any surviving or acquiring entity or its affiliates) or affiliates being listed or publicly traded on any national securities exchange (“Delisting Change in Control”): (A) the last day of the Performance Period will be deemed to be the effective date of the Change in Control, (B) the Determination Date will be as soon as practicable after the effective date of the Change in Control and (C) the Settlement Date[s] will occur as soon as practicable following the Determination Date, but no later than March 15 coinciding with the last day of the applicable “short-term deferral” period described in Reg. 1.409A-1(b)(4). Any Transfer Restrictions will cease to apply to your Shares at Risk, and the forfeiture events in Paragraph 9 will not apply to your Shares at Risk.
(ii)
If the Change in Control is not a Delisting Change in Control described in Paragraph 12(a)(i) and if your Employment terminates when you meet the requirements of a Qualifying Termination, then (i) Paragraph 9(a) will not apply and your PSUs that are not Vested

will become Vested, and (ii) you will receive delivery of the Settlement Amount [and payment of the Dividend Equivalent Payments] on the [applicable] Settlement Date that would have otherwise been made pursuant to Paragraph 6, and (iii) any Transfer Restrictions will cease to apply to your Shares at Risk, and the forfeiture events in Paragraph 9 will not apply to your Shares at Risk.]
(b)
[You Have a Qualifying Termination
. If your Employment terminates when you meet the requirements of a Qualifying Termination, (i) you will, on the [applicable] Settlement Date, receive delivery of the Settlement Amount [and payment of the Dividend Equivalent Payments] that[, in each case,] would

have otherwise been made pursuant to Paragraph 6, and (ii) any Transfer Restrictions and Paragraph 9 will cease to apply to your Shares at Risk. In addition, the forfeiture events in Paragraph 9 [(except the MRT Appendix)] will not apply to your Shares at Risk.]

(c)

Death

. If you die, [as soon as practicable] after the date of death and receipt of any documentation as may be requested by the Committee or a SIP Administrator, (i) your Account will receive delivery of the Settlement Amount [and payment of the Dividend Equivalent Payments] on the [applicable] Settlement Date that[, in each case,] would have otherwise been made pursuant to Paragraph 6, and (ii) Transfer Restrictions will cease to apply to any Shares at Risk delivered in respect of the Settlement Amount.

Other Terms and Conditions of Your Award

13.

Additional Terms, Conditions and Consents

.

(a)

You Will Be Required to Accept Additional Terms

. In addition to the terms of the Award Agreement, the Award Documentation includes Additional Terms. By accepting the Award and executing the Signature Card, you agree to any such Additional Terms applicable to you as set forth in the Award Documentation, which will include but are not limited to the following:

(i)

Notice Period Policy

. You must agree to abide by the terms, as applicable to you, of the Policy on Notice Periods for Recipients of Year-End Equity-Based Awards and Other Deferred Compensation (the “Notice Period Policy”)[; which, for the avoidance of doubt, applies to your Award].

(ii)

Mutual Agreement Regarding Arbitration of Employment-Related Disputes

. You must agree to the Mutual Agreement Regarding Arbitration of Employment-Related Disputes, which imposes obligations in addition to those contained in Paragraph 16.

(iii)

APAC Restrictive Covenants

. If you are employed by the Firm in the Asia-Pacific Region (

e.g.

, Australia, the People’s Republic of China, the Hong Kong Special Administrative Region, India, Indonesia, Japan, the Republic of Korea, New Zealand, Singapore, Taiwan), you must agree to the APAC Restrictive Covenants Agreement.

(iv)

Role-, Business- or Division-Specific Agreements

. If applicable to you, you must accept Additional Terms related to your specific role, business unit or division as set forth in the Award Documentation.

(b)